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Case Name: *Lin v. Amazon.com Services, LLC*

Case No.: 23CV421635

After full consideration of the evidence, the separate statements submitted by the parties, and the authorities submitted by each party, the court makes the following rulings:

On August 22, 2023, plaintiff Tao Lin (“Plaintiff”) filed a form complaint that did not include any causes of action. On February 21, 2024, after defendant Amazon.com Services LLC (“Defendant”) demurred, Plaintiff filed a first amended complaint (“FAC”) that alleged a cause of action for breach of contract (see FAC, first cause of action for breach of contract, referring to Attachments BC-2 and BC-4) which includes an attachment that lists three bullet points: breach of employment contract, employment retaliation and unlawful demand for employment repayment. Defendant for summary judgment on the FAC, or, in the alternative, moves for summary adjudication of each cause of action.

DEFENDANT’S MOTION FOR SUMMARY JUDGMENT, OR, IN THE ALTERNATIVE, FOR SUMMARY ADJUDICATION

Defendant’s burden on summary judgment

“A defendant seeking summary judgment must show that at least one element of the plaintiff’s cause of action cannot be established, or that there is a complete defense to the cause of action. ... The burden then shifts to the plaintiff to show there is a triable issue of material fact on that issue.” (*Alex R. Thomas & Co. v. Mutual Service Casualty Ins. Co.* (2002) 98 Cal.App.4th 66, 72; internal citations omitted; emphasis added.)

“The ‘tried and true’ way for defendants to meet their burden of proof on summary judgment motions is to present affirmative evidence (declarations, etc.) negating, as a matter of law, an essential element of plaintiff’s claim.” (Weil et al., Cal. Practice Guide: Civil Procedure Before Trial (The Rutter Group 2007) ¶ 10:241, p.10-91, *citing* *Guz v. Bechtel National Inc.* (2000) 24 Cal.4th 317, 334; emphasis original.) “The moving party’s declarations and evidence will be strictly construed in determining whether they negate (disprove) an essential element of plaintiff’s claim ‘in order to avoid unjustly depriving the plaintiff of a trial.’” (*Id.* at § 10:241.20, p.10-91, *citing* *Molko v. Holy Spirit Assn.* (1988) 46 Cal.3d 1092, 1107.)

“Another way for a defendant to obtain summary judgment is to ‘show’ that an essential element of plaintiff’s claim cannot be established. Defendant does so by presenting evidence that plaintiff ‘does not possess and cannot reasonably obtain, needed evidence’ (because plaintiff must be allowed a reasonable opportunity to oppose the motion.) Such evidence usually consists of admissions by plaintiff following extensive discovery to the effect that he or she has discovered nothing to support an essential element of the cause of action.” (*Id.* at ¶ 10:242, p.10-92, *citing* *Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 854-855.)

Defendant’s arguments

Defendant moves for summary judgment, or, in the alternative for summary adjudication of each cause of action on the grounds that: the claim for retaliation lacks merit because Plaintiff did not timely exhaust his administrative remedies; the claim for retaliation lacks merit because there is no protected activity under FEHA; the claim for retaliation lacks merit because Plaintiff did not experience an adverse employment action; the claim for retaliation lacks merit because there is no causal connection between Plaintiff’s resignation and the alleged adverse actions; the claim for breach of contract lacks merit because there was no breach of the employment contract by Defendant’s actions or nonaction; and, there is no claim for demand for repayment because there is no cognizable cause of action for a demand for repayment and Defendant did not do

anything wrong in seeking repayment for monies Plaintiff should never have received for work that was never performed.

Defendant meets its initial burden to demonstrate that the FAC lacks merit.

Retaliation claim

The elements for a claim for retaliation are: “(1) the employee’s engagement in a protected activity... ; (2) retaliatory animus on the part of the employer; (3) an adverse action by the employer; (4) a causal link between the retaliatory animus and the adverse action; (5) damages; and (6) causation.” (*Le Mere v. Los Angeles Unified School Dist.* (2019) 35 Cal.App.5th 237, 243.) In support of its motion, Defendant presents: the declaration of its Principal HR Business Partner Claire Amsler; the declaration of Plaintiff’s former supervisor Santosh Lahankar; the transcript of Plaintiff’s deposition; the offer letter; the June 30, 2021 email regarding the O-1 approval timeline; a DHS U.S. Citizenship and Immigration Services I-797A Notice of Action regarding Plaintiff stating that the petition and request for change of status was approved; the July 10, 2021 email from Mario Ruiz of Fragomen, Del Rey, Bernsen & Loewy informing Plaintiff that the petition was approved; the August 2, 2021 email from Plaintiff to Jeanlee Bazile of Fragomen, Del Rey, Bernsen & Loewy in which he stated that “I checked my case from uscis.gov, and show ‘Case Was Approved And My Decision Was Emailed’”; an email chain discussing the timeline of Plaintiff’s suspension for lapse in work authorization, Plaintiff’s approval of petition and the lifting of his suspension resulting in payment, Defendant’s notification to Plaintiff that his visa was approved and thus could return to work, Plaintiff’s acknowledgement of the approval notice, Plaintiff’s supervisor’s query to Plaintiff as to when he was coming back to work, and the request for repayment for monies paid while Plaintiff was not making efforts to return to work while being paid for work, the August 11, 2021 email from Abraham Badran of Fragomen, Del Rey, Bernsen & Loewy informing Plaintiff that they received the O-1 approval notice for his petition; September 3 and September

7, 2021 emails with attorneys at Fragomen, Del Rey, Bernsen & Loewy regarding the receipt of the approval notice and application package; October 8, 2021 emails between Plaintiff and managers regarding his return to work; Plaintiff's responses to Defendant's special interrogatories, set two; peer feedback regarding Plaintiff's coding; the January 5, 2022 email from Plaintiff requesting an employment verification letter for his green card and a response indicating that "Amazon only sponsor green card for L5 level employees... Amazon don't sponsor green card for L4 level employees"; a January 5, 2022 email from plaintiff informing his supervisor that he is resigning from his position as SDE for Amazon; the January 13, 2022 email from Plaintiff in which he states that January 14, 2022 will be his last day at Amazon and asking what he needs to do to transfer his Green Card application to his new employer; a January 17, 2023 email from Carrie Biesinger regarding an investigation of Plaintiff's concerns, including his performances and his claims; Plaintiff's Focus Performance Feedback; an email chain between Plaintiff and Carrie Biesinger regarding Plaintiff's claims; January 14, 2023 email from Plaintiff to Claire Amsler regarding Defendant's claim of overpayment; calculations regarding overpayment; a February 12, 2022 letter regarding repayment; Defendant's employment policies; Plaintiff's 2021 performance review; the FAC; and, the CRD/EEOC complaint filed on August 4, 2025.

Defendant's evidence meets its initial burden to demonstrate that: Plaintiff neither engaged in a protected activity nor suffered an adverse action by Defendant (see evidence cited by Def.'s separate statement of undisputed material facts, nos. ("UMFs") 77-98); and, there is neither evidence of a retaliatory animus on the part of Defendant nor a causal link between any retaliatory animus and any adverse action (see UMFs 99-120). As Defendant argues, any purported action by Defendant after Plaintiff's voluntary resignation is not an adverse employment action as Plaintiff was no longer employed. (See *Featherstone v. Southern California Permanente Medical Group* (2017) 10 Cal.App.5th 1150, 1162-1163 (stating that "an adverse employment action is one that affects an employee, not a former employee, in the terms, conditions or privileges of his or her employment, not in the terms, conditions or privileges of his

or her unemployment... an employee who voluntarily resigns cannot show that he or she has suffered an adverse employment decision... refusing to accept rescission of a resignation is ‘not an adverse employment action for the simple reason that the employment relationship has ended’”).)

Breach of contract

“The elements of a breach of contract claim are that a contract was formed; that the plaintiff did everything required by the contract; that the defendant did not do something required by the contract; and that the plaintiff was harmed as a result.” (*CSAA Ins. Exchange v. Hodroj* (2021) 72 Cal.App.5th 272, 276 (Sixth District).) Defendant presents the offer letter, the FAC, emails regarding the green card application and repayment, the Amsler declaration, the Lahankar declaration, Notices of Action and Plaintiff’s deposition testimony to demonstrate that it did not breach any provision of the purported employment contract—the only written contract between the parties. (See UMFs 48-70.) The FAC alleges that “the execution of an employment verification letter... [was] a requirement by... the employment offer contract.” (FAC, Attachment BC-2, ¶ 1; see also Attachment BC-4, ¶ 1 (alleging that “Defendant breached the employment offer contract by refusing to sign the employment verification letter”).) Here, there is nothing in the offer letter that requires Defendant to sign an employment verification letter. The refusal to sign the employment letter may result in Plaintiff’s unemployment; however, the offer letter expressly indicates that Plaintiff is an at will employee and that Defendant “may terminate our relationship at any time for any re, with or without cause.” The Amsler declaration states that the offer letter “is the only written agreement between Amazon and Plaintiff.” (Amsler decl. in support of motion for summary judgment, ¶ 3.) Defendant meets its initial burden to demonstrate that the breach of contract claim lacks merit.

“Unlawful Demand for Employment Repayment” claim

There is no known cause of action for unlawful demand for employment repayment and the FAC fails to point to any statute to suggest a violation of any statute. Regardless, Defendant argues that even if such a cause of action existed, it rightfully sought repayment of monies paid to and improperly taken by Plaintiff for work not performed. Defendant presents portions of Plaintiff's deposition testimony, the Amsler and Lahankar declarations, the offer letter, the June 30, 2021 email regarding the O-1 approval timeline, the DHS U.S. Citizenship and Immigration Services I-797A Notice of Action regarding Plaintiff stating that the petition and request for change of status was approved, the July 10, 2021 email from Mario Ruiz of Fragomen, Del Rey, Bernsen & Loewy informing Plaintiff that the petition was approved, the August 2, 2021 email from Plaintiff to Jeanlee Bazile of Fragomen, Del Rey, Bernsen & Loewy in which he stated that "I checked my case from uscis.gov, and show 'Case Was Approved And My Decision Was Emailed'", an email chain discussing the timeline of Plaintiff's suspension for lapse in work authorization, Plaintiff's approval of petition and the lifting of his suspension resulting in payment, Defendant's notification to Plaintiff that his visa was approved and thus could return to work, Plaintiff's acknowledgement of the approval notice, Plaintiff's supervisor's query to Plaintiff as to when he was coming back to work, and the request for repayment for monies paid while Plaintiff was not making efforts to return to work while being paid for work, the August 11, 2021 email from Abraham Badran of Fragomen, Del Rey, Bernsen & Loewy informing Plaintiff that they received the O-1 approval notice for his petition; September 3 and September 7, 2021 emails with attorneys at Fragomen, Del Rey, Bernsen & Loewy regarding the receipt of the approval notice and application package, October 8, 2021 emails between Plaintiff and managers regarding his return to work, Plaintiff's responses to Defendant's special interrogatories, set two, the January 5, 2022 email from Plaintiff requesting an employment verification letter for his green card and a response indicating that "Amazon only sponsor green card for L5 level employees... Amazon don't sponsor green card for L4 level employees," the January 5, 2022 email from plaintiff informing his supervisor that he is resigning from his position as SDE for Amazon, the January 13, 2022 email from Plaintiff in which he states that January 14, 2022 will be his last day at Amazon and asking what he needs to do to transfer his

Green Card application to his new employer, an email chain between Plaintiff and Carrie Biesinger regarding Plaintiff's claims, a January 14, 2023 email from Plaintiff to Claire Amsler regarding Defendant's claim of overpayment, calculations regarding overpayment, a February 12, 2022 letter regarding repayment, Defendant's employment policies, the FAC and the CRD/EEOC complaint filed on August 4, 2025. Defendant meets its initial burden to demonstrate that the claim for unlawful demand for employment repayment lacks merit because it was justified in seeking repayment. (See UMFs 121-133, 147-159.)

As Defendant has met its initial burden as to each of the three claims of the FAC, Defendant meets its initial burden to demonstrate that the FAC lacks merit.

In opposition, Plaintiff fails to demonstrate the existence of a triable issue of material fact.

In opposition, Plaintiff's argument is a single page. Plaintiff's lone evidence filed in support of his opposition at the time of his opposition is his own declaration; however, much of the declaration's statements are hearsay, lack foundation, violates the best evidence rule, are speculative, are argumentative or a legal conclusion and/or contradicts prior testimony. Defendant's objections numbers 1-7 to paragraphs 2-4 and 6-8 of Plaintiff's declaration are SUSTAINED. "A party cannot avoid summary judgment by asserting facts based on mere speculation and conjecture, but instead must produce admissible evidence raising a triable issue of fact." (*LaChapelle v. Toyota Motor Credit Corp.* (2002) 102 Cal.App.4th 977, 981.) Nor may a party "evade summary judgment by submitting a declaration contradicting his own prior deposition testimony... [be] based on opinion and conclusions instead of evidentiary facts... [and must demonstrate] personal knowledge and competency." (*Guthrey v. State of California* (1998) 63 Cal.App.4th 1108, 1120.)

Moreover, Plaintiff's separate statement in opposition fails to cite to any evidence to support any of Plaintiff's assertions. (See Code Civ. Proc. § 437c, subd. (b)(3) (stating that

“[t]he opposition papers shall include a separate statement that responds to each of the material facts contended by the moving party to be undisputed... [e]ach material fact contended by the opposing party to be disputed shall be followed by a reference to the supporting evidence... [f]ailure to comply with this requirement of a separate statement may constitute a sufficient ground, in the court’s discretion, for granting the motion”); see also *Batarse v. Service Employees Internat. Union, Local 1000* (2012) 209 Cal.App.4th 820, 828 (stating that “[e]ach disputed fact must be followed by a reference to supporting evidence... [f]ailure to comply with this requirement of a separate statement may constitute a sufficient ground, in the court’s discretion, for granting the motion”); see also Rule of Court 3.1350, subd.(f)(2) (stating that “An opposing party who contends that a fact is disputed must... describe the evidence that supports the position that the fact is controverted... [c]itation to the evidence in support of the position that a fact is controverted must include reference to the exhibit, title, page, and line numbers”).) Regardless, it is clear that Plaintiff’s declaration—the sole evidence submitted with his opposition—fails to demonstrate the existence of a triable issue of material fact.

In reply, Defendant argues that: none of the evidence submitted in opposition demonstrates the existence of a triable issue of material fact and Plaintiff’s arguments are based on speculation and conjecture; the separate statement is woefully deficient as it is not based on any evidence; and, Plaintiff failed to address Defendant’s legal arguments as to whether each of the claims lack merit, or cite to any legal authority in his arguments. The Court agrees with Defendant as to each of its arguments.

Perhaps recognizing the deficiencies in his opposition, after Defendant filed its reply brief, Plaintiff then filed several documents, including a supplemental declaration, emails and Defendant’s records. However, this evidence was, of course, neither referenced in Plaintiff’s opposition nor his opposing separate statement, and was submitted after Defendant filed its reply brief. Plaintiff also did not file an amended separate statement to correct the deficiencies pointed out by Defendant in its reply brief. In the exercise of its discretion, the Court declines to

consider this newly filed evidence and thus, Plaintiff fails to demonstrate the existence of a triable issue of material fact. (See *San Diego Watercrafts, Inc. v. Wells Fargo Bank* (2002) 102 Cal.App.4th 308, 316 (consideration of evidence on summary judgment submitted after the opposing party responded to the issues raised in the separate statement was a violation of due process rights, also stating that “where evidence is not referenced... and is not called to the attention of the court at all, a summary judgment should not be reversed on grounds the court should have considered such evidence”); see also *Jay v. Mahaffey* (2013) 218 Cal.App.4th 1522, 1537 (stating that “[t]he general rule of motion practice, which applies here, is that new evidence is not permitted with reply papers... [t]his principle is most prominent in the context of summary judgment motions”); see also *Nazir v. United Airlines, Inc.* (2009) 178 Cal.App.4th 243, 252 (stating that “[t]he reply also included 153 pages of ‘Exhibits and Evidence in Support of Reply’ ... [n]o such evidence is generally allowed”); see also *Valentine v. Plum Healthcare Group, LLC* (2019) 37 Cal.App.5th 1076, 1089 (stating that “the trial court erred in admitting the evidence... [n]ew evidence is generally not permitted with reply papers”).)

As Plaintiff fails to demonstrate the existence of a triable issue of material fact, Defendant’s motion for summary judgment is GRANTED.

CONCLUSION

Defendant’s motion for summary judgment is GRANTED.

Defendant’s objections numbers 1-7 to paragraphs 2-4 and 6-8 of Plaintiff’s declaration are SUSTAINED.

The Court did not consider Plaintiff’s evidence filed after Defendant filed its reply brief.

Defendant shall prepare and submit a proposed final order consistent with this tentative ruling and a proposed judgment.

Calendar Line 10

Case Name: *Robert Busto v. Ford Motor Company et al.*

Case No.: 24CV454552

On June 4, 2020, plaintiff Robert Busto (“Busto”) purchased a 2019 Ford Expedition (the “Subject Vehicle”). (Complaint, ¶ 10.) Ford Motor Company (“Ford”) delivered the Subject Vehicle to Busto with various warranties. (*Id.* at ¶ 11.) Within the express warranty periods, the Subject Vehicle exhibited defects, including transmission, engine, and electrical defects. (*Id.* at ¶ 15.)

On December 19, 2024, Busto filed a complaint against Ford and co-defendant Gosch Ford Temecula, asserting the following causes of action: (1) violation of subdivision (d) of Civil Code section 1793.2; (2) violation of subdivision (b) of Civil Code section 1793.2; (3) violation of subdivision (a)(3) of Civil Code section 1793.2; (4) breach of the implied warranty of merchantability; (5) fraudulent inducement – concealment; and (6) negligent repair. Ford moves for summary adjudication as to the fifth cause of action for fraud on the grounds that Busto cannot prove the necessary elements of this cause of action. (Notice of Summary Adjudication Motion, p. 1:8-12.)

The court exercises its discretion to consider Busto’s untimely opposition.

“An opposition to the motion shall be served and filed not less than 20 days preceding the noticed or continued date of hearing, unless the court for good cause orders otherwise.” (Code Civ. Proc., § 437c, subd. (b)(2).) Ford’s motion was scheduled to be heard on July 9, 2026. Bustos needed to file an opposition no later than June 18, 2026, to be considered timely. Bustos, however, did not file and serve an opposition until June 25, 2025. Despite the late opposition, Ford timely filed and served reply papers addressing the substantive merits of the opposition. The court therefore will consider the merits of the opposition. (*Fox v. Ethicon Endo-Surgery, Inc.* (2005) 35 Cal.4th 797, 806 [courts have a policy favoring disposition of cases on the merits rather than on procedural grounds]; *Kapitanski v. Von’s Grocery Co.* (1983) 146 Cal.App.3d 29, 32 [“Cognizant of the strong policy favoring the disposition of cases on their merits judges usually consider whether to exercise their discretion in applying local court rules and frequently consider documents which have been untimely filed.”], internal citations omitted.) The court acknowledges, however, that Ford had only a single day to file a timely reply to Busto’s opposition given the date that Busto filed the opposition. The court admonishes Busto to